Chapter 23

Lessons from Tihar: The Making of a Model

THE TRANSFORMATION OF TIHAR LEADS US INEVITABLY TO CERTAIN conclusions. The way events took shape was on an almost day-to-day, problem-solving basis. An in-house search for the various factors, which individually or collectively, made the running of the ponderous machinery of Tihar difficult, and at times even impossible, was carried out and these factors were identified. Corrective action was then taken, which, over a period of time, took such a form that it could be systematized and almost incorporated into a manual on statutes on human rights, correctional staff duties and prisoners' privileges and the quality of time spent in prison. Considering the large numbers of prisoners and staff who had to be dealt with almost simultaneously, the immensity of the task became evident, and the quantum of effort put in was extremely laudable. The whole exercise had apparently been based on the concern that all corrective measures in the prisons had been taken with the idea of integrating them completely with the general needs and aspirations of the total community, of which 'prisons' formed only a part.

What made the Tihar story unique was the fact that the approach to the prison problems under the new IG (P) here had been novel. As mentioned at the outset, correctional reforms in prisons had become a reality that engaged the attention of the governments of almost all countries. Regular international conferences took place (and continue to take place) and several committees were formed in different countries to look into the plight of prison management. In the case of Tihar too, the same concerns governed the reform movement with the difference that instead of first getting involved in the time-consuming activity of forming committees and subcommittees with their ensuing recommendations, the bull here was taken by the horns. Only after the efficacy of each and every correctional activity had been tested was it recorded and documented and that too not merely as a recommendation but as a directive to the staff.

Two very major issues emerged from the foregoing approach. The first pertained to the highlighting of certain general principles that must inform our outlook towards, and understanding of, the prison situation, not just in our own country but abroad as well. The second issue pertained to the fact that no reform or correctional activity was possible unless and until a sensitivity to the human condition was developed. This basic understanding lay at the root of all reform measures. In whatever condition, and in whatever place we may discover the human being, his or her rights ensuing from this virtue must be recognized and appreciated. The 'working material' was human; any system not permeated by humaneness would not, and could not be expected to, work.

The essence of the prison concept was the time spent there, in isolation from society, of which one was earlier a part. Proper channelization and utilization of this time were therefore essentially what any prison administrative or correctional staff should have been concerned with. It was the quality of